

Exhibit A: Sample Work Order Contract

STATE OF MINNESOTA PROFESSIONAL AND TECHNICAL SERVICES WORK ORDER CONTRACT

This work order contract is between the [FILL IN NAME OF STATE INTITUION], acting through its [FILL IN THE NAME OF YOUR AGENCY OR BOARD. EXAMPLE: "commissioner of _____" OR "director of _____."] ("State Institution") and [GIVE THE FULL NAME OF THE CONTRACTOR INCLUDING ITS ADDRESS] ("Contractor"). This work order contract is issued under the authority of Master Contract T-Number _____, CFMS Number _____, and is subject to all provisions of the master contract which is incorporated by reference.

Work Order Contract

1 Term of Contract

- 1.1 **Effective date:** [SPELL OUT FULL DATE (e.g., April 1, 2001)], or the date the State Institution obtains all required signatures under Minn. Stat. § 16C.05, subd. 2, whichever is later.

The Contractor must not begin work under this contract until this contract is fully executed and the Contractor has been notified by the State's Authorized Representative to begin the work.

- 1.2 **Expiration date:** [SPELL OUT FULL DATE (e.g., April 1, 2001)], or until all obligations have been satisfactorily fulfilled, whichever occurs first.

2 Contractor's Duties

The Contractor, who is not a state employee, will perform the duties specified in Exhibit A which is attached and incorporated into this work order contract.

3 Consideration and Payment

- 3.1 **Consideration.** The State Institution will pay for all services performed by the Contractor using the Fee Schedule specified in Exhibit B, which is attached and incorporated into this work order contract.

The Contractor will be paid for actual eligible costs, not to exceed (**Written Amount**) dollars (\$x.xx). consistent with the breakdown of costs contained in Exhibit B which is attached and incorporated into this work order, at rates not to exceed the hourly rates listed below:

Travel Expenses. Reimbursement for travel and subsistence expenses actually and necessarily incurred by the Contractor as a result of this work order contract will not exceed (**Written Amount**) dollars (\$x.xx).

Total Obligation. The total obligation of the State Institution for all compensation and reimbursements to the Contractor under this work order contract will not exceed (**Written Amount**) dollars (\$x.xx).

- 3.2. **Invoices.** The State Institution will promptly pay the Contractor after the Contractor presents an itemized invoice for the services actually performed and the State Institution's Authorized Representative accepts the invoiced services. Invoices must be submitted timely and according to the following schedule outlined in Exhibit A.

4 Project Managers

The State Institution's Project Manager is [NAME, TITLE, ADDRESS, TELEPHONE NUMBER]. The State Institution's Authorized Representative will certify acceptance on each invoice submitted for payment.

The Contractor's Project Manager is [NAME, TITLE, ADDRESS, TELEPHONE NUMBER]. If the Contractor's Project Manager changes at any time during this work order contract, the Contractor must immediately notify the State Institution.

5 E-Verify Certification (In accordance with Minn. Stat. §16C.075)

For services valued in excess of \$50,000, Contractor certifies that as of the date of services performed on behalf of the State, Contractor and all its subcontractors will have implemented or be in the process of implementing the federal E-Verify program for all newly hired employees in the United States who will perform work on behalf of the State. Contractor is responsible for collecting all subcontractor certifications and may do so utilizing the E-Verify Subcontractor Certification Form available at <http://www.mmd.admin.state.mn.us/doc/VerifySubCertForm.doc>. All subcontractor certifications must be kept on file with Contractor and made available to the State upon request.